

Additional security under para 4.20 — writ dismissed

High Court of Judicature at Allahabad · Division Bench · 21 March 2017 · WRIT - C No. 19566 of 2010 · **Writ dismissed following companion order of even date.**

HEADNOTE

A writ challenging additional security demanded under para 4.20 of the U.P. Electricity Supply Code, 2005 was dismissed, the Court adopting its order of the same date in Writ-C No. 30898 of 2016. An earlier Bench had connected the petition with similar 4.20 challenges and, without prejudice, restrained the discom from demanding additional security pending hearing.

FACTUAL SUMMARY

M/s Agarwal Cold Storage & Ice Factory challenged Dakshinanchal Vidyut Vitran Nigam Ltd.'s demand of additional security under paragraph 4.20 of the U.P. Electricity Supply Code, 2005. The writ was connected with Writ Petition No. 30582 of 2009 (Vehina Steels) and similar petitions. On 10 May 2010 the respondents were given three weeks to file a counter affidavit, and an interim restraint against demanding additional security was granted, without prejudice, following the stay already operating in the connected matter.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.20

additional security

HOLDING

The writ challenging demand of additional security under para 4.20 of the U.P. Electricity Supply Code, 2005 was dismissed, the Court adopting its order of even date in Writ-C No. 30898 of 2016. An earlier interim order had, without prejudice, restrained the respondents from demanding additional security until further orders while the petition stood connected with similar 4.20 challenges. ¶ 1-2